

Court No. - 3

Case :- U/S 482/378/407 No. - 6046 of 2019

Applicant :- Shri Ram

Opposite Party :- State Of U.P. Thru. Prin. Secy. Home. Lko & Others

Counsel for Applicant :- Hemant Kumar Mishra, Arti Ganguly

Counsel for Opposite Party :- Govt. Advocate

Hon'ble Anil Kumar, J.

As prayed, list/put up on Monday i.e. 02.09.2019 as fresh.

Order Date :- 30.8.2019

Ravi/

Court No. - 11

Case :- U/S 482/378/407 No. - 6046 of 2019

Applicant :- Shri Ram

Opposite Party :- State Of U.P. Thru. Prin. Secy. Home. Lko & Others

Counsel for Applicant :- Hemant Kumar Mishra, Arti Ganguly

Counsel for Opposite Party :- Govt. Advocate

Hon'ble Rajeev Singh, J.

Put up on 06.09.2019, as fresh.

Order Date :- 2.9.2019

S. Shivhare

Court No. - 11

Case :- U/S 482/378/407 No. - 6046 of 2019

Applicant :- Shri Ram

Opposite Party :- State Of U.P. Thru. Prin. Secy. Home. Lko & Others

Counsel for Applicant :- Hemant Kumar Mishra, Arti Ganguly

Counsel for Opposite Party :- Govt. Advocate

Hon'ble Rajeev Singh, J.

Heard learned counsel for the parties.

Learned counsel for the applicant submitted that the applicant is a bonafide customer of Madhyanchal Vidyut Vitran Nigam Limited, Lucknow and his account No. C424417114162. He further submitted that in the most mechanical manner on the written complaint of Mr. Kamendra Singh, Junior Engineer, on 27.09.2018, the F.I.R. as Case Crime No. 226/2018, under Section 135 Electricity Act, 2003, P.S. Auras, District Unnao was registered. It is alleged that the applicant was unauthorized connection holder.

Learned counsel for the applicant also drew attention of the Court on annexure No.5 at page 38 which is the electricity payment receipt issued by Madhyanchal Vidyut Vitran Nigam Limited on 13.08.2019, in which applicant deposited Rs. 587/-.

Learned counsel for the applicant further submitted that mandatory provisions of Chapter VIII of U.P. Electricity Supply Code, 2005 has not been complied with and the charge sheet was filed by the investigating officer in the most mechanical manner and the court below has taken cognizance.

Learned A.G.A. opposed the prayer of applicant and submitted that after concluding of the evidence, the charge sheet was filed by the investigating officer and there is no illegality in the order

passed by the court below as well as investigation conducted by the investigating officer.

It is evident from the record that the applicant is a registered consumer with an account No.C424417114162 and he paid the bill on 13.08.2019, which is appended as annexure No.5.

Considering the facts and circumstances of the case, the matter requires consideration.

Issue notice to the opposite party Nos. 2 to 4.

Steps be taken within a week.

List this case on 30.10.2019.

In the meantime, no coercive steps shall be taken against the applicant in pursuance of the proceedings going before court below.

The applicant is permitted to array Madhyanchal Vidyut Vitran Nigam Limited through Executive Engineer, Unnao, through course of day.

Order Date :- 6.9.2019

S. Shivhare

Court No. - 11

Case :- U/S 482/378/407 No. - 6046 of 2019

Applicant :- Shri Ram

Opposite Party :- State Of U.P. Thru. Prin. Secy. Home. Lko & Others

Counsel for Applicant :- Hemant Kumar Mishra, Arti Ganguly

Counsel for Opposite Party :- Govt. Advocate

Hon'ble Rajeev Singh, J.

List in the next cause list.

Interim order, if any, shall continue till the next date of listing.

Order Date :- 30.10.2019

S. Shivhare

Court No. - 11

Case :- U/S 482/378/407 No. - 6046 of 2019

Applicant :- Shri Ram

Opposite Party :- State Of U.P. Thru. Prin. Secy. Home. Lko & Others

Counsel for Applicant :- Hemant Kumar Mishra, Arti Ganguly

Counsel for Opposite Party :- Govt. Advocate

Hon'ble Rajeev Singh, J.

List in the next cause list.

Interim order, if any, shall continue till the next date of listing.

Order Date :- 7.11.2019

Amit/-

Court No. - 16

Case :- U/S 482/378/407 No. - 6046 of 2019

Applicant :- Shri Ram

Opposite Party :- State Of U.P. Thru. Prin. Secy. Home. Lko & Others

Counsel for Applicant :- Hemant Kumar Mishra, Arti Ganguly

Counsel for Opposite Party :- Govt. Advocate

Hon'ble Pankaj Bhatia, J.

Learned A.G.A. has filed a counter affidavit, which is taken on record. Two weeks' time is granted to file rejoinder affidavit.

List after two weeks.

Interim order, if any, is extended till the next date of listing.

Order Date :- 15.11.2019

SR